

SENATE No. 557

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act accelerating wetlands restoration projects.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/28/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/28/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/28/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/28/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/28/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/28/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/28/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>2/28/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/28/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>4/1/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>5/16/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>5/16/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/30/2025</i>

SENATE No. 557

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 557) of Brendan P. Crighton, Joanne M. Comerford, James B. Eldridge, James K. Hawkins and other members of the General Court for legislation to accelerate and streamline wetlands restoration. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 457 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act accelerating wetlands restoration projects.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 18 of chapter 91 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the fifth paragraph, the following
3 paragraph:

4 No license or permit shall be required for dredge or fill, as defined by the department, as
5 part of work to restore tidelands, including salt marshes; provided that such a project is permitted
6 by the department or local issuing authority pursuant to section 40 of chapter 131 and applicable
7 regulations; and provided further, that such a project does not impair public access or navigation
8 and does not involve placement of a structure.

9 SECTION 2. Section 40 of chapter 131 of the General Laws, as so appearing, is hereby
10 amended by inserting after the twenty-seventh paragraph the following paragraph:

11 The notice of intention required in the first paragraph of this section shall not apply to
12 targeted hand removal of invasive, non-native plants from resource areas. The department shall
13 issue regulations on the scope and methods for such invasives removal, including standards to
14 minimize disturbance to soils and native plants and wildlife, requirements for notification to
15 conservation commissions, and the competency of individuals performing such work.

16 SECTION 3. Notwithstanding any special or general law to the contrary, the secretary of
17 energy and environmental affairs shall undertake a Wetlands Restoration Streamlining Initiative
18 to improve the efficiency and reduce permitting and monitoring costs for ecological restoration
19 projects as defined in 310 CMR 10.04. This initiative shall include a review of laws and
20 regulations governing projects in wetlands or waterways including, but not limited to, those
21 overseen by the environmental policy act office, department of environmental protection, office
22 of coastal zone management, division of fisheries and wildlife, natural heritage and endangered
23 species program, division of marine fisheries, and division of ecological restoration. The review
24 shall solicit input from experts and restoration practitioners. Not later than 12 months following
25 the passage of this act, the secretary shall issue a report with recommendations for legislative and
26 regulatory amendments to reduce the time, complexity, and costs of permitting ecological
27 restoration projects, and maintaining important habitat.

28 SECTION 4. (a) The executive office of energy and environmental affairs shall establish
29 a pilot program for research activities and demonstration projects for nature-based solutions, as
30 defined in section 1 of chapter 21N of the General Laws. The program shall: (i) define categories

of nature-based solutions and develop standards for their use; (ii) coordinate, streamline and expedite the permitting and review process for activities and projects; and (iii) prioritize activities and projects that advance scientific knowledge, provide conservation benefits, and minimize impacts to existing wetlands. The secretary of energy and environmental affairs and commissioners/directors of permitting agencies may modify specific performance standards for nature-based solutions.

(b) The pilot program shall commence upon the effective date of this Act and operate for 5 years. Not later than one year from the effective date of this Act, and annually thereafter, the secretary shall file a report with the clerks of the senate and house of representatives and the joint committee on environment and natural resources that: (i) details the categories of nature-based solutions; (ii) analyzes the approval time for all permits required for each approved research activity or demonstration project; (iii) specifies any specific performance standards modified for each approved research activity or project; and (iv) provides data about the effectiveness of each approved research activity or project.